

Ian Woodland

Subject: FW: URGENT : Fwd: Transfer of Communal Land at Liscombe Park

From: "Kent, Wendy" <Wendy.Kent@landregistry.gsi.gov.uk>

Date: 18 July 2014 13:12:33 WEST

To: 'Jonathan Pope' <jdpope@btinternet.com>

Cc: "'edward.jeffery@robertlunnlowth.co.uk'" <edward.jeffery@robertlunnlowth.co.uk>

Subject: RE: Transfer of Communal Land at Liscombe Park

Dear Mr. Pope,

We spoke earlier today regarding the part of the roadway tinted brown on my illustrative plan, which our records showed was not registered.

I have done some more investigation, and I have found that our records are incorrect and the land is actually registered under title number BM282615.

The transfer dated 3 February 2006 made between M8 Plc and Thameside Homes Limited (BM308821) did not include the said area of roadway tinted brown on my illustrative plan, and therefore, this land remains in M8 Plc title BM282615. I have amended our records to show this is the case.

Also, as discussed, the 2 parking spaces registered leasehold with 10 The Courtyard will be treated the same as the parking spaces shown edged and numbered 2, 3 and 4 in blue on my illustrative plan and the lease will be noted against the registration BM388451, Courtyard Management Company (Rock Lane Farm) Limited.

I have copied your solicitors into this email for their information.

Any further queries, please contact me.

Wendy Kent

GLCT07

Direct Dial 0300 006 1116

CTN 7 2020 61116

Land Registry Gloucester Office, Twyver House, Bruton Way, Gloucester GL1 1DQ

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From: Jonathan Pope [<mailto:jdpope@btinternet.com>]

Sent: 09 July 2014 14:17

To: Kent, Wendy

Cc: edward jeffery

Subject: Re: Transfer of Communal Land at Liscombe Park

Dear Ms Kent

Many thanks for your email and for the extension granted which is much appreciated.

We will reach a decision with the residents one way or the other and confirm this to you by the new date.

Jonathan Pope

On 9 Jul 2014, at 10:59, "Kent, Wendy" <Wendy.Kent@landregistry.gsi.gov.uk> wrote:

Dear Mr Pope,

I refer to our telephone conversation today regarding a further extension of time for your application.

In view of the complexity of the situation, and all your efforts to deal with the matter promptly, I can confirm that we can grant a further extension.

Your application will be held until **31 July 2014** to allow you time to meet with the residents and confirm to us if you wish to proceed with your application on the basis of the current Transfer plan (i.e. as shown edged red on my illustrative plan attached to letter to your solicitors dated 17 June 2014, **including** the areas tinted blue but **excluding** the areas tinted pink and brown.)

I will inform your solicitors of the new cancellation date.

Yours sincerely

Wendy Kent

GLCT07

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From: Kent, Wendy

Sent: 07 July 2014 15:42

To: 'Jonathan Pope'

Subject: RE: Transfer of Communal Land at Liscombe Park

Dear Mr Pope,

Thank you for your email below, and additional information provided.

1. I have re-investigated the files of BM323391, Mr McCanns' title, and although it may never have been the intention to transfer the ground floor entrance way to Mr. McCann, unfortunately the transfer gave a description of the land to be transferred as being edged red on plan A, and the body of the deed made no reference to the exclusion of any land within the red edged extent. Any other markings shown on the transfer plan are irrelevant as the basis of the extent is described in the deed as "edged red". The title plan of BM323391 was completed correctly in accordance with the Transfer dated 5 January 2007.

Therefore, to remedy the situation it will be necessary for a further deed to be prepared to rectify the position. An application for alteration of the register will then be required to bring the title plan up to date by recording the changes made by the further deed.

2. The decision to re-consider the position of one of the areas tinted blue on my original illustrative plan, being one of the areas fall within Mr Hallams garden, does not affect the problems that arise on the rest of the estate. Although the Ordnance Survey did indeed update their map to show the building in a more accurate position, affecting the corner of Mr Hallams property, it does not alter the fact that even with

this update, the fencing of all the properties involved was not erected in the positions shown on the relevant transfer plans.

In order to rectify the all the points raised in my previous correspondence, unfortunately, as mentioned in point 1 above, it will be necessary for further deeds to be prepared.

I will send a copy of my points above to your solicitors.

Your application is due for cancellation on 15 July 2014. As it seems this may take quite a while to resolve, your application will be cancelled and returned to you solicitor after this date. It would seem sensible to lodge applications to resolve the extents of the individual plots first, then your re-lodged application will proceed unhindered.

If you require any further assistance whilst trying to resolve the issues, please do not hesitate to contact me further.

Yours faithfully,

Wendy Kent

GLCT07

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From: Jonathan Pope [<mailto:jdpope@btinternet.com>]

Sent: 07 July 2014 11:42

To: Kent, Wendy

Cc: edward jeffery

Subject: Transfer of Communal Land at Liscombe Park

Dear Ms Kent

Further to my email of 26th June, I've now obtained further information regarding the access Archway to the Courtyard (the pink hatched area) and how the problem with this part of the transfer may have arisen. I believe this may enable you to resolve this detail without requiring us to go through a lengthy set of legal actions on this.

I've discussed the matter with Mr McCann and he confirms that he agrees it was never the intention to transfer the ground floor area of the Archway to his title and that this should have remained communal land to be transferred to the management company. This appears to accord with the title documents he has (see below) and he is willing to write to you to confirm this if needed.

He has provided me with copies of his conveyance documents and I believe these show how the mistake has arisen.

I have scanned and attach for you here the relevant plan pages. I assume you have access to these full documents on your system, but if not I can send you the full paper copies including all text.

1. Land Registry Document **OS2R Certificate Date 13 Feb 2007 Official Search No 219-BH-RK** issued to Mr McCann's solicitors includes a plan which clearly shows the red boundary line with a break in it at the outer and inner entrance of the Archway and the area is also marked with a diagonal cross. I have not found any text reference which explains this break or

diagonal marking, but assume that it is intended to show clearly (?) that this area of land includes a throughway at ground level and is to be treated differently from the other red hatched area. I assume therefore this was an inadequate (?) attempt to confirm a flying freehold of the area above separate from the ground level beneath.

2. The **TP1** document for Mr McCann's title to Plot 10 dated 1 January 2007 incorporates two plans, one showing the red outlined area of the plot and the other showing the land to be retained as management land. I attach the relevant parts of each A2 plan. The first seems to have an almost continuous red boundary line on the plot (although if you enlarge it you'll see a slight break in the outer line) but it also included within this area the diagonal grey hatching which is used to denote the communal land as shown on the second plan. The second plan clearly shows what the communal land is intended to be and confirms that the ground level area of the Archway is included in the communal land and therefore cannot be included in the plot 10 title. Taken together I believe that these two plans confirm that the ground level communal land is not included in the Plot 10 Title. I think the OS2R plan makes this clear too. I suggest that the mistake over your "*pink hatched area*" arises from these clerical inaccuracies/confusions.

May I ask you to study these plans together with an **OS2R Certificate Date 3 Jan 2007 Official Search No. 190-BH-GK** and **OS2R Certificate Date 26 March 2007 Official Search No 248-BC-HB** for which Mr McCann had the texts but not any attached plans. I assume you should find that these plans correspond with item 1 listed above and support this interpretation.

Please let me know what you think. You can email me or reach me on 07799 764964 should you need to discuss anything.

I believe that given all this confusion above and the correction recently issued to Mr Hallam regarding one of his "*blue hatched areas*", it may also be the case that the other "*blue hatched areas*" problems we've discussed may arise from discrepancies between the OS maps and the transfer documents. Again I'd be grateful to know if you think any of these can be resolved without expensive and lengthy legal transactions.

Best wishes.

Jonathan Pope

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